

Court No. - 36

Case :- WRIT - C No. - 22209 of 2010

Petitioner :- Mahboob

Respondent :- State Of U.P. Thru. P.S. Ministry Of Finance & Ors.

Petitioner Counsel :- Chandra Bhan

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sheo Kumar Singh, J.

Hon'ble Yogesh Chandra Gupta, J.

Heard learned counsel for the petitioner and Sri Pankaj Kumar Shukla, learned Advocate who appeared for the respondent Corporation.

Submission is that petitioner wants to pay the amount in instalment.

It is also submitted that petitioner has already deposited an amount of Rs. 25,000/- and that is to be adjusted.

This is all factual matter and we are not to resolve the same specially when specific procedure is provided under the U. P. Electricity Supply Code, 2005 .

Sri Shukla referred before the Court provisions as contained in 4.16 of the Code noted above which clearly permits the competent authority to exercise such powers.

In view of the aforesaid, it will be concern of the petitioner to approach the concerned Executive Engineer who is to take appropriate decision on merits within shortest possible time preferably within a period of one month from the date of receipt of the move.

Petitioner undertakes to file the application along with certified copy of this order before the concerned Executive Engineer within a period of ten days from today.

Writ petition is disposed of accordingly.

Order Date :- 22.4.2010

Sachdeva